



Mersey Docks and Harbour Board (Ore Berth) Act 1971

CHAPTER xxxiv

ARRANGEMENT OF SECTIONS

Section

1. Short title.
2. Interpretation.
3. Correction of errors in deposited plan and book of reference.
4. Power to construct works.
5. Subsidiary works.
6. Maintenance and alteration of works.
7. Power to deviate.
8. Period for completion of works.
9. Tidal works not to be constructed without approval of Secretary of State.
10. Provision against danger to navigation.
11. Abatement of works abandoned or decayed.

c. xxxiv *Mersey Docks and Harbour Board (Ore Berth)*
Act 1971

Section

12. Survey of tidal works.
13. Lights on tidal works during construction.
14. Permanent lights on tidal works.
15. Effect of existing Acts upon works.
16. Applying sections of Acts of 1858 and 1936.
17. Borrowing powers.
18. For protection of Mersey Tunnel Joint Committee.
19. Saving for powers of Treasury.
20. Saving for Town and Country Planning Acts.
21. Saving for Harbours Act 1964.
22. Restriction on powers of Board.
23. Crown rights.
24. Repeals.
25. Costs of Act.

ELIZABETH II



1971 CHAPTER xxxiv

An Act to authorise the Mersey Docks and Harbour Board
to construct further works; and for other purposes.
[14th July 1971]

WHEREAS by the Mersey Docks and Harbour Act 1857 1857 c. clxii.
(being an Act for consolidating the docks at Liverpool
and Birkenhead into one estate, and for vesting the
control and management of them in one public trust, and for
other purposes), the Mersey Docks and Harbour Board (herein-
after called "the Board") was incorporated for the purposes
therein mentioned and by that Act and subsequent enactments
relating to the Board various powers have from time to time
been conferred on the Board:

And whereas in order to meet the requirements of the trade of
the port of Liverpool it is expedient that the Board be authorised

c. xxxiv *Mersey Docks and Harbour Board (Ore Berth)*
Act 1971

to construct the works in this Act described and to use part of the bed, banks and shores of the river Mersey as by this Act provided:

And whereas it is expedient that the borrowing powers of the Board be increased and that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas a plan and sections showing the situations, lines and levels of the works authorised by this Act, and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands, and describing the same, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons, and with the town clerk of the borough of Birkenhead, which plan, sections and book of reference are in this Act respectively referred to as the deposited plan, the deposited sections, and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Mersey Docks and Harbour Board (Ore Berth) Act 1971.

Interpretation.

2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by section 3 (Interpretation of terms in this Act) of the Act of 1858, other than words and expressions of which the meanings have been repealed by subsequent Acts, shall have the same respective meanings and—

1858 c. xcii.

“the Act of 1858” means the Mersey Dock Acts Consolidation Act 1858;

“the authorised works” means the works authorised by section 4 (Power to construct works) of this Act;

“the borough” means the borough of Birkenhead;

1857 c. clxii.

“the existing enactments” means the Mersey Docks and Harbour Act 1857 and subsequent Acts and Orders obtained by the Board, other than the Pilotage Orders

1920 c. ciii.

Confirmation (No. 1) Act 1920;

“land” includes land covered by water;

“ the level of high water ” means the level of mean high-water springs;

“ the limits of deviation ” means the limits of deviation authorised by section 7 (Power to deviate) of this Act;

“ tidal work ” means so much of any work authorised by this Act (and in sections 10, 11, 12 and 14 includes so much of the works authorised by either of the Acts repealed by section 24 (Repeals) of this Act) as is on, under or over tidal waters or tidal lands below the level of high water;

“ Trinity House ” means the corporation of Trinity House of Deptford Strond.

(2) This Act is to be read as if the words “ or thereabouts ” were inserted after each distance or width mentioned in section 4 (Power to construct works) of this Act.

(3) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

3.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Board, after giving not less than ten days' notice to the owner, lessee and occupier of the land in question, may apply to two justices having jurisdiction in the borough for the correction thereof. Correction of errors in deposited plan and book of reference.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, and with the town clerk of the borough; and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Board to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

4.—(1) Subject to the provisions of this Act the Board may construct and maintain in the river Mersey and on the bed, banks and shores thereof, in the situations and lines and within the limits of deviation shown on the deposited plan and according Power to construct works.

to the levels shown on the deposited sections, the works hereinafter described, together with all necessary and proper works and conveniences connected therewith or incidental thereto, that is to say:—

Work No. 1 An approach jetty of open construction 49 feet wide commencing at a point on the river Mersey wall 133 yards south-east of the south-eastern corner of Wallasey Dock, extending in an easterly direction and terminating at a point 84 yards from its commencement.

Work No. 2 A berthing jetty of open construction 82 feet wide connected to the termination of Work No. 1, commencing 5 yards to the north of that termination, extending in a southerly direction and terminating at a point 191 yards from its commencement.

Work No. 3 Three circular pile mooring dolphins, the centre of the northernmost thereof being situated 140 yards north of the north-west corner of Work No. 2 and the centres of the remainder being placed in a straight line in a southerly direction at intervals of 50 yards each.

Work No. 4 Three circular pile mooring dolphins, the centre of the northernmost thereof being situated 35 yards south of the south-west corner of Work No. 2 and the centres of the remainder being placed in a curved line in a generally easterly then southerly direction at intervals of 45 yards each.

(2) The Board may within the limits of deviation inclose and reclaim from the foreshore and bed of the river Mersey and may hold as part of the undertaking of the Board so much of the foreshore and bed of that river as is required for or in connection with the authorised works.

Subsidiary
works.

5. Subject to the provisions of this Act, the Board may from time to time, for the purposes of or in connection with the works authorised by this Act, execute, place and keep either temporarily or permanently, within the limits of deviation on, under or over tidal waters or tidal lands below the level of high water all such caissons, coffer dams, piles, quays, walls, abutments, embankments, booms, dolphins, access works, fenders, moorings, pontoons, cranes, winches, gantries, conveyors, stagings, pipes, cables, mains, transporters and transporter tracks as it may find necessary or expedient.

Maintenance
and
alteration of
works.

6. Subject to the provisions of this Act, the Board may from time to time maintain, renew, enlarge or alter temporarily or permanently the authorised works or any part thereof:

Provided that nothing in this section shall authorise the Board to deviate laterally or vertically beyond the limits of deviation.

7. In executing the authorised works, the Board may deviate laterally to any extent within the limits of deviation shown on the deposited plan, and may also deviate vertically upwards or downwards from the levels shown on the deposited sections to any extent not exceeding 10 feet.

8. If the authorised works are not completed before 1st January, 1981, the powers by this Act granted to the Board for constructing the authorised works shall on that day cease, except as to so much thereof as is then substantially commenced:

Power to deviate.
Period for completion of works.

Provided that nothing in this section shall prejudice the powers conferred upon the Board by section 6 (Maintenance and alteration of works) of this Act.

9.—(1) A tidal work shall not be constructed, enlarged or altered except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by the Secretary of State before the work is begun.

Tidal works not to be constructed without approval of Secretary of State.

(2) If a tidal work is constructed, enlarged or altered in contravention of this section or of any condition or restriction imposed under this section—

(a) the Secretary of State may by notice in writing require the Board at its own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if, on the expiration of thirty days from the date when the notice is served upon the Board, it has failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

(b) if it appears to the Secretary of State urgently necessary so to do, he may remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be recoverable from the Board as a simple contract debt.

10.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof the Board shall forthwith notify Trinity House and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as Trinity House shall from time to time direct.

Provision against danger to navigation.

(2) If the Board fails to notify Trinity House as required by this section or to comply in any respect with a direction given under this section, it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Abatement of
works
abandoned or
decayed.

11.—(1) Where a tidal work is abandoned or suffered to fall into decay the Secretary of State may by notice in writing require the Board at its own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

(2) Where a work consisting partly of a tidal work and partly of works on or over land above the level of high water is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Board, it has failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Board as a simple contract debt.

Survey of
tidal works.

12. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work or of the site upon which it is proposed to construct the work, and any expenditure incurred by the Secretary of State in any such survey and examination shall be recoverable from the Board as a simple contract debt.

Lights on
tidal works
during
construction.

13.—(1) The Board shall at or near a tidal work during the whole time of the construction, renewal, enlargement or alteration thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Secretary of State shall from time to time direct.

(2) If the Board fails to comply in any respect with a direction given under this section it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Permanent
lights on tidal
works.

14.—(1) After the completion of a tidal work the Board shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as Trinity House shall from time to time direct.

(2) If the Board fails to comply in any respect with a direction given under this section it shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

15. The works authorised by this Act and any works connected therewith, and the bed, banks and shores of the river Mersey on which the works are constructed, shall for all purposes, so far as is not inconsistent with the provisions of this Act, be deemed to be docks and lands of the Board within the meaning of the existing enactments or any of them. Effect of existing Acts upon works.

16. The authorised works and any works connected therewith shall be deemed to be works authorised to be erected, established and maintained by the Board within the meaning of section 284 (Application of moneys as herein stated) of the Act of 1858, and section 13 (Application of revenue) of the Mersey Docks and Harbour Board Act 1936. Applying sections of Acts of 1858 and 1936.

1936 c. xxvii.

17. The Board may from time to time borrow at interest on the security of the rates for the time being belonging to it, in addition to the sums which it is at the passing of this Act authorised to borrow by the existing enactments or any other enactment, any further sum or sums, not exceeding in the whole seven million pounds, for the purposes of the works authorised by this Act and for any dredging of the river Mersey in connection therewith. Borrowing powers.

18. For the protection of the Joint Committee the following provisions shall, unless otherwise agreed in writing between the Board and the Joint Committee, apply and have effect:— For protection of Mersey Tunnel Joint Committee.

(1) In this section—

“ the Joint Committee ” means the Mersey Tunnel Joint Committee incorporated by the Mersey Tunnel Acts 1925 to 1968;

“ the works ” means the authorised works and any works authorised by section 5 (Subsidiary works) of this Act:

(2) The Board shall not use explosives for the purposes of constructing, maintaining, renewing, enlarging or altering the works unless not less than fourteen days before they intend to commence using such explosives they shall have submitted to the Joint Committee or their consulting engineers full particulars of the explosive charges so to be used for their reasonable approval:

Provided that if the Joint Committee do not within the said period of fourteen days signify in writing to the Board their disapproval thereof and the grounds of their disapproval, they shall be deemed to have approved thereof:

c. xxxiv *Mersey Docks and Harbour Board (Ore Berth)*
Act 1971

- (3) The Board shall afford to the Joint Committee and their consulting engineers or other duly authorised representatives of the Joint Committee such access to the works as they may reasonably require during the progress thereof for the purposes of inspection:
- (4) The Board shall indemnify and hold harmless the Joint Committee from all claims, demands, costs, expenses, damages or loss which may be made on or against the Joint Committee or which they may reasonably incur or have to pay or which they may reasonably sustain in consequence of the construction, use, maintenance, renewal, enlargement or alteration of the works or of the failure or want of repair thereof or any subsidences caused thereby or in consequence of any act or omission of the Board, their contractors, agents, workmen or servants:

Provided that—

(i) the Joint Committee shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board;

(ii) nothing in this paragraph shall impose any liability on the Board with respect to any claims, demands, costs, expenses, damages or loss so far as the same may be attributable to the neglect, default or breach of duty of the Joint Committee, their servants or agents;

(iii) nothing in this paragraph shall oblige the Board to repay any additional expense which the Joint Committee may incur in maintaining any property unless such maintenance results directly from the construction of the authorised works;

(iv) this paragraph shall only relate to property of the Joint Committee which is in existence at the passing of this Act:

- (5) Any difference arising between the Board and the Joint Committee under this section (other than a difference as to the construction of this section) shall be settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party, after notice in writing to the other, by the President of the Institution of Civil Engineers.

19. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for powers of Treasury.
1946 c. 58.

20.—(1) Section 220 of the Town and Country Planning Act 1962 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that session; and accordingly the Town and Country Planning Acts 1962 to 1968 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

Saving for Town and Country Planning Acts.
1962 c. 38.

(2) In their application to development authorised by this Act, article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1963 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to development begun within five years after the passing of this Act.

(3) In this section the reference to article 3 of and Class XII in Schedule 1 to the Town and Country Planning General Development Order 1963 includes a reference to corresponding provisions of any general order superseding that order made under section 14 of the Town and Country Planning Act 1962 or any corresponding provision of an Act repealing that section.

21. Nothing in this Act shall exempt the Board from the provisions of sections 9 and 10 of the Harbours Act 1964 in relation to the works authorised by this Act.

Saving for Harbours Act 1964.
1964 c. 40.

22. The provisions of this Act shall not be construed as authorising any act or omission on land, whether it be within the limits of deviation or otherwise, constituting nuisance or giving rise to damage which apart from these provisions would be actionable at the suit of any person on any grounds other than—

Restriction on powers of Board.

(a) a limitation imposed by law on the capacity of the Board; or

(b) interference with navigation.

Crown rights.

23. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Board to take, use or in any manner interfere with any portion of the shore or bed of the sea or any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

Repeals.

1873 c. cxliv.

1897 c. clxx.

Costs of Act.

24. The Mersey Dock (South Reserve Landing Stage) Act 1873 and the Mersey Dock Act 1897 are hereby repealed.

25. The Board out of any moneys for the time being in its hands shall pay and discharge all the costs, charges and expenses of and incidental to the applying for, obtaining and passing of this Act.

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